



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 4-27-2026
BY: *[Signature]*
MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 38TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON APRIL
21, 2026

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON OFFICIAL BUSINESS:

Hon. Jane V. Plaza		Municipal Vice- Mayor
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ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Michael C. Escuyos		SB Member
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ORDINANCE NO. 43
Series of 2026

**“AN ORDINANCE PRESCRIBING THE NEW MINIMUM WAGE RATES FOR CONSTRUCTION WORKERS
AND LABORERS HIRED BY THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR AS
WELL AS THOSE ENGAGED BY CONTRACTORS IN THE LOCAL GOVERNMENT PROJECTS AND
PROVIDING PENALTIES FOR VIOLATION THEREOF”**

Author: Hon. Nilo S. Bigno
Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the Local Government Units are mandated under the Republic Act No. 7160 to
promote the general welfare and improve the economic conditions of its constituents;

WHEREAS, construction workers and laborers engaged in infrastructure projects of the

Municipality play a vital role in the implementation of development programs and delivery of basic services;

WHEREAS, it is necessary to ensure that these workers receive just and reasonable compensation for their labor;

WHEREAS, the Municipality recognizes the need to establish updated minimum wage rates applicable to construction workers and laborers hired directly by the Municipality and by contractors implementing Local Government Infrastructure projects;

WHEREAS, the establishment of standard wage rates will help promote fairness, prevent exploitation of workers, and ensure compliance with labor standards;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the "CONSTRUCTION WORKER WAGE ADJUSTMENT ORDINANCE OF MUNICIPALITY OF CARMEN, SURIGAO DEL SUR."

Section 2. COVERAGE- This Ordinance shall apply to all construction workers and laborers employed:

- a) Construction Workers and Laborers hired directly by the Municipal Government of Carmen.
- b) Construction Workers and Laborers employed by contractors, subcontractors, or service providers undertaking infrastructure and development projects funded or implemented by the Municipal Government.

Section 3. DEFINITION OF TERMS- For purposes of this Ordinance, the terms shall be defined as follows:

- 1) Municipal Engineering Office (MEO)- is a Local Government Unit Department responsible for planning, designing, constructing, and maintaining public infrastructure, such as roads, bridges and public buildings, while enforcing Building Code.
- 2) Contractor- is an individual or company hired to manage or perform specific work on a building project under a formal contract.
- 3) Construction Workers- are people who build, repair and maintain structures such as houses, buildings, roads, bridges and other infrastructure.
- 4) Foreman- the on-site supervisor who leads a crew of workers, acting as the critical link between management and manual labor.
- 5) Skilled Worker- is a professional with specialized training, education, or experience-often certified or licensed-required to perform specific, technical or complex trades.
- 6) Semi-Skilled Worker- is a laborer with specialized, hand-on experience or limited, short-term training (day/weeks) in specific tasks, falling between unskilled labor and highly skilled trades people.
- 7) Laborer- is a manual worker who perform diverse physical task on job sites, including site preparation, material handling, cleaning and assisting skilled trades people.

Section 4. NEW MINIMUM DAILY WAGE RATES- The new minimum daily wage rates for construction workers are hereby set as follows:

FOREMAN	- Seven Hundred Fifty Pesos (Php750.00)/per day
SKILLED WORKERS	- Six Hundred Fifty Pesos (Php650.00)/per day
SEMI-SKILLED WORKERS	- Six Hundred Pesos (Php600.00)/per day
UNSKILLED WORKERS/LABORERS	- Five Hundred Pesos (Php500.00)/per day

Section 5. MANDATORY HIRING QUOTA- Pursuant to RA 6685, contractors shall hire at least fifty percent (50%) of unskilled labor and thirty percent (30%) of skilled labor from the local community.

Section 6. MONITORING AND ENFORCEMENT- The Municipal Engineering Office and other concerned offices of the Municipality shall monitor compliance with this Ordinance. Contractors shall submit payroll records or proof of payment upon request.

Section 7. PROHIBITED ACTS- It shall be unlawful for any contractor, subcontractor or responsible official to:

- a) Pay wages lower than the minimum rates prescribed in this Ordinance.
- b) Falsify payroll records to conceal underpayment of workers.
- c) Refuse inspection or monitoring by authorized Municipal Officials.

Section 8. COMPLIANCE- Failure to comply with the mandated wage rates shall be ground for the cancellation of the contract, blacklisting of the contractor and withholding of payment by the Municipal Engineer.

Section 9. REPEALING CLAUSE- All Ordinances, Rules and Regulation, or part thereof, whose provisions are conflict with, or contrary to the provisions of this Ordinance are hereby repealed, amended or modified accordingly.

Section 10. SEPARABILITY CLAUSE- If any part or provision of this ordinance shall be held unconstitutional or invalid, other parts or provisions hereof which are not affected shall continue to be in full force and effect.

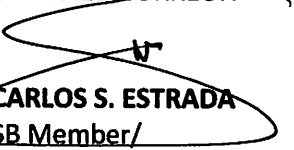
Section 11. EFFECTIVITY- This Ordinance shall take effect fifteen (15) days after posting in at least three (3) conspicuous places in the Municipality.

ENACTED this 21st day of April, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT.


CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
4/24/2026